**Bicycle Newfoundland and Labrador (BNL)**
**SCREENING POLICY**

## 1. GOAL

Bicycle Newfoundland and Labrador (BNL) understands that screening personnel and volunteers is a vital part of providing a safe sporting environment and has become a common practice among sport organizations that provide programs and services to the sport community.

## 2. POLICY STATEMENT

BNL is committed to providing a safe sport environment and, as such, requires that all persons wishing to participate in activities of the organization must be in compliance with this policy. This policy also applies to clubs affiliated with the organization.

## 3. DEFINITIONS

Athlete – Includes any individual who is registered to compete for the BNL organization or an affiliated club

Criminal Record Check (CRC) – A search of the RCMP Canadian Police Information Centre (CPIC) system for adult convictions

Criminal Record Screening Certificate - verifies whether or not the individual has a criminal record. Issued by the RNC when a CRC is required

Enhanced Police Information Check (E-PIC) – a Criminal Record Check plus a search of Local Police Information, available from Sterling Backcheck

Local Police Information (LPI) – Additional conviction and selected non-conviction information in national and local police data sources which may be relevant to the position sought

Minor – Any Individual who is under the age of majority at the time and in the jurisdiction where the alleged Maltreatment has occurred. Adults are responsible for knowing the age of majority. For the purpose of protection in Newfoundland and Labrador, the age of majority is defined as 19 years old.

Person in Authority (PIA) - includes any person who holds a position of trust or authority over an Athlete pursuant to the role assigned to them by BNL or an affiliated club BNL including, but not limited to, coaches, instructors, officials, managers, support personnel, chaperones, committee members, and Directors and Officers.

Police Records Check – term used by the RCMP for a Criminal Records Check.

Vulnerable Individuals – Includes Minors and vulnerable adults (people who, because of age, disability or other circumstance, are in a position of dependence on others or are

otherwise at a greater risk than the general population of being harmed by people in positions of trust or authority).

Vulnerable Sector Check (VSC) – A detailed check that includes a search of the RCMP Canadian Police Information Centre (CPIC) system, Local Police Information, and the Pardoned Sex Offender database

## 4. APPLICATION OF THE POLICY

This Policy applies to all individuals whose position with BNL or an affiliated club is one of trust or authority which may relate to, at a minimum, finances, supervision, or Vulnerable Individuals. Not all individuals associated with BNL or affiliated clubs will be required to obtain a Criminal Record Check or submit screening documents because not all positions pose a risk of harm to the organization or participants. The BNL organization or affiliated club (as applicable) will determine which individuals are subject to screening using the following guidelines (variations to the guidelines will be at the discretion of the organization):

*Level 1 – Low Risk* - Individuals involved in low-risk assignments who are not in a supervisory role, not directing others, not involved with finances, and/or do not have unsupervised access to Vulnerable Individuals. Examples:

a. Parents, youth, or volunteers who are helping out on a non-regular or informal basis

*Level 2 – Medium Risk* – Individuals involved in medium risk assignments who may be in a supervisory role, may direct others, may be involved with finances, and/or who may have limited access to Vulnerable Individuals. Examples:

a. Athlete support personnel
b. Non-coach employees or managers
c. Coaches who are typically under the supervision of another coach
d. Officials

*Level 3 – High Risk* – Individuals involved in high-risk assignments who occupy positions of trust and/or authority, have a supervisory role, direct others, are involved with finances, and/or who have frequent or unsupervised access to Vulnerable Individuals. Examples:

a. BNL staff members
b. Full-time coaches
c. Board of Directors & Regional Representatives
d. Coaches who travel with Athletes
e. Coaches who could be alone with Athletes
f. Any individual traveling with the provincial team

## 5. SCREENING COMMITTEE

a. Implementation of this policy is the responsibility of the Screening Committee, which consists of the Chair and up to two other members. Members of the Screening Committee must possess the requisite skills, knowledge and abilities to accurately review screening documents and render decisions under this Policy.
b. The Screening Committee is responsible for reviewing all documents (e.g. Screening Disclosure forms, CRCs, etc.) submitted and, based on the review, making decisions regarding the appropriateness of individuals filling positions within the organization.

## 6. SCREENING REQUIREMENTS

A Screening Requirements Matrix is provided as **Appendix A**.

It is the policy of BNL that when an individual is first engaged by the organization:

*Level 1* individuals will:

i. Complete an Application Form (**Appendix B**)
ii. Complete a Screening Disclosure Form (**Appendix C**)
iii. Participate in training, orientation, and monitoring as determined by the organization

*Level 2* individuals will:

i. Complete an Application Form (**Appendix B**)
ii. Complete a Screening Disclosure Form (**Appendix C**)
iii. Provide a Criminal Record Check (CRC)
iv. Participate in training, orientation, and monitoring as determined by the organization
v. Provide a driver's abstract, if requested/required by virtue of the position

*Level 3* individuals will:

i. Complete an Application Form (**Appendix B**)
ii. Complete a Screening Disclosure Form (**Appendix C**)
iii. Provide a Criminal Record Check (CRC) and a Vulnerable Sector Check (VSC)
iv. Provide references related to the position upon request
v. Participate in training, orientation, and monitoring as determined by the organization
vi. Provide a driver's abstract, if requested/required by virtue of the position

If BNL or an affiliated club learns that an individual has provided false, inaccurate, or misleading information, the individual will immediately be removed from their position and may be subject to further discipline.

## 7. RENEWAL

Unless the Screening Committee determines, on a case-by-case basis, to modify the submission requirements, individuals who are required to submit a Screening Disclosure Form, CRC, VSC, or Screening Renewal Form, are required to submit the documents as follows:

a. A Screening Renewal Form every year
b. A Screening Disclosure Form every three years
c. A Criminal Record Check every three years
d. A Vulnerable Sector Check once

The Screening Committee may request that an individual provide any of the above documents at any time. Such request will be in writing and reasons will be provided for the request.

If an individual subsequently receives a charge, conviction for, or is found guilty of, an offense they will report this circumstance immediately to BNL or affiliated club as applicable.

Additionally, the individual will inform the organization of any changes to their circumstance that would alter their original responses in their Screening Disclosure Form.

## 8. THE APPLICATION PROCESS

Individuals must obtain a CRC and/or VSC from their local police station (RNC or RCMP office). The RNC currently covers North East Avalon area, Corner Brook and Labrador City whereas the RCMP covers the remainder of the province.

If applying through the RNC, go to https://www.rnc.gov.nl.ca/services/certificate-of-conduct/ to access the online application. Two options "Criminal Record Screening Certificate" and "Criminal Record Screening Certificate and Vulnerable Sector Check" appear so be sure to choose the correct one. The "Criminal Record Screening Certificate" from the RNC verifies whether or not the individual has a criminal record so click that for a CRC.

If applying through the RCMP, call the nearest detachment to obtain further details. It is advisable to phone ahead rather than drop in. The RCMP use the term "Police Records Check" for a Criminal Records Check (CRC).

The RNC and RCMP offices conduct CRC and VSC checks at no cost for persons volunteering. Applicants must indicate their volunteer status during the application process.

The steps in the procedure are outlined below:

a. The applicant submits the applicable screening document (Screening Disclosure or Screening Renewal form) to the Screening Committee.
b. The Screening Committee reviews the documentation, determines the risk level of the applicant and makes a decision about the required documentation.
c. If a CRC or VSC is required, the Chair completes the Request For Criminal Records Check and/or Vulnerable Sector Check. The form must indicate the type or types of check required. It must include the BNL mailing address and letterhead and it must be signed by the Chair. If the position is a volunteer one, the letter must also state this is for a volunteer *non-paid* position. Doing so will waive any fees.
d. The Chair returns the completed Request For Criminal Records Check and/or Vulnerable Sector Check to the applicant.
e. The applicant completes the appropriate application for the police station in their local area and submits it with the completed "Request For Criminal Records Check" from the Chair of the Screening Committee. Two pieces of government-issued identification (one of which must have a photo) must also be submitted.
f. The police station will forward the results of the screening check directly to the Screening Committee Chair via mail. Since receipt of the results of a CRC or VSC may take two or more weeks, the organization, at its discretion, may permit an individual to participate in the role during the delay. This permission may be withdrawn at any time and for any reason.

An individual who refuses or fails to provide the necessary screening documents will be ineligible to volunteer or to apply for the position sought. The individual will be informed that their application and/or position will not proceed until such time as the screening documents are submitted.

## 9. ABOUT E-PIC

Some non-profits use an E-PIC in place of a CRC obtained from the local police station. An Enhanced Police Information Check (E-PIC) is a Criminal Record Check plus a search of Local Police Information, available from Sterling Backcheck. The turnaround time is swift - Sterling Backcheck provides E-PIC results in one business day. Results can be simultaneously returned to the coach's personal account and to the appropriate person at the requesting sport agency.

Although a fee is charged, organizations that have joined the Coaching Association of Canada's Responsible Coaching Movement may be given access to E-PIC at a discounted rate. Detailed information about an E-PIC may be found on the Sterling Backcheck website at http://www.backcheck.net/e-pic.htm. Individuals can obtain an E-PIC via https://www.sterlingtalentsolutions.ca/landing-pages/c/cac_ace/

## 10. STEERING COMMITTEE REVIEW

Upon receipt of the screening findings, the Screening Committee must:

a. Ensure that the correct screening documents have been received for a CRC, VSC or both
b. Reviews the documents and makes a decision that:
   i. The individual has passed screening and may participate in the desired position;
   ii. The individual has passed screening and may participate in the desired position with conditions;
   iii. The individual has not passed screening and may not participate in the desired position; or
   iv. More information is required from the individual.

In making its decision, the Screening Committee will consider the type of offence, date of offence, and relevance of the offence to the position sought. The following examples are considered to be offences that may cause the individual to not pass the screening requirements or to have conditions imposed on the individual by the Screening Committee:

<u>If imposed in the last ten years</u>:
Any offence involving the use of a motor vehicle, including, but not limited to, impaired driving

a. Any offence involving conduct against public morals
b. Any offence involving theft or fraud

<u>If imposed at any time</u>:

a. Any offence involving a Minor or Minors
b. Any offence of assault, physical or psychological violence
c. Any offence involving trafficking or possession of illegal drugs
d. Any offence involving the possession, distribution, or sale of any child-related pornography
e. Any sexual offence

## 11. CONDITIONS AND MONITORING

Excluding the incidents above which, if revealed, would cause the individual to not pass screening, the Screening Committee may determine that incidents revealed on an individual's screening documents may allow the individual to pass the screening process and participate in a desired position with *conditions* imposed. The Screening Committee shall have the sole and unfettered discretion to apply and remove conditions, determine the length of time for the imposition of conditions, and determine the means by which adherence to conditions may be monitored.

## 12. RECORDS

All records will be maintained in a confidential manner and will not be disclosed to others except as required by law, or for use in legal, quasi-legal, or disciplinary proceedings.

The records kept as part of the screening process include, but are not limited to:

a. An individual's Vulnerable Sector Check
b. An individual's E-PIC (for a period of three years)
c. An individual's Screening Disclosure Form (for a period of three years)
d. An individual's Screening Renewal Form (for a period of one year)
e. Records of any conditions attached to an individual's registration by the Screening Committee
f. Records of any discipline applied to any individual by the Organization, by a Member, or by another sport organization

## 13. CRIMINAL CONVICTIONS

An individual's conviction for any of the following *Criminal Code* offences may result in expulsion from the organization and/or removal from designated positions, competitions, programs, activities and events upon the sole discretion of BNL or affiliated club:

a. Any offence of physical or psychological violence
b. Any crime of violence including, but not limited to, all forms of assault
c. Any offence involving trafficking of illegal drugs
d. Any offence involving the possession, distribution, or sale of any child-related pornography
e. Any sexual offence
f. Any offence involving theft or fraud

## 14. RESOURCES

This policy has been adapted from the Screening Policy, a component of the Safe Sport Policy Manual (original author Steven Indig) obtained with permission from SportNL (2022)

**Other resources used include:**

Screening Policy, Cycling Canada (2021)
09-11-Screening-Policy-Feb-2021.pdf (cyclingcanada.ca)

Safe Sport Policy, Cycling Canada (2021)
09-10-Safe-Sport-Policy-Final.pdf (cyclingcanada.ca)

## 15. POLICY HISTORY

| Policy History | |
|---|---|
| Approved | **2022** |
| Next Review Date | **September 5, 2021** |
| Revision Approval Dates | |

Original Policy Lead: Julian Kennedy

## Appendix A – Screening Requirements Matrix

| Risk Level | Roles (Note Young People Exception Below) | Training Recommended/ Required | Screening |
|---|---|---|---|
| Level 1 Low Risk | • Parents, youth or volunteers acting in non-regular or informal basis<br>• Volunteers who are not in a position of authority or who do not have access to Vulnerable Individuals | Recommended:<br>• Respect in Sport for Activity Leaders | • Complete an Application Form (**Appendix B**)<br>• Complete a Screening Disclosure Form (**Appendix C**)<br>• Participate in training, orientation, and monitoring as determined by the organization |
| Level 2 Medium Risk | • Athlete support personnel<br>• Non-coach employees or managers<br>• Coaches who are typically under the supervision of another coach<br>• Officials<br>• Volunteers working in a regular capacity with Vulnerable Individuals and who are in a position of authority | Recommended based on role:<br>• Respect in Sport for Activity Leaders<br>• Commit to Kids<br><br>Required:<br>• Respect in Sport Activity Leaders (National Officials)<br>• National Coaching Certification Program (NCCP) Making Ethical Decisions (MED) Certified (Coaches) | **Level 1 Requirements plus:**<br>• Provide a CRC<br>• Provide a driver's abstract, if requested/required by virtue of position |

| | | | |
|---|---|---|---|
| Level 3 High Risk | • BNL staff members<br>• Full-time coaches<br>• Board of Directors & Regional Representatives<br>• Coaches who travel with Athletes<br>• Coaches who could be alone with Athletes<br>• Any individual traveling with the provincial team | Recommended based on role:<br>• Respect in Sport for Activity Leaders<br>• Commit to Kids<br><br>Required:<br>• NCCP MED Certified (Coaches) | **Level 1 & 2 Requirements, plus:**<br><br>• Provide references related to the position, if requested<br><br>• Provide a VSC |

**Young People**
The organization defines a young person as someone who is younger than 18 years old. When screening young people, BNL will require the young person to submit up to two (2) letters of reference in lieu of a Criminal Record and Vulnerable Sector Check.

## Appendix B – Application Form

*Note: Individuals who are applying to volunteer or work within certain positions with the Bicycle Newfoundland and Labrador (BNL) organization or an affiliated club must complete this Application Form. Individuals need to complete an Application Form once for the position sought. If the individual is applying for a new position, a new Application Form must be completed.*

**NAME**:

_____
First Middle Last

**CURRENT PERMANENT ADDRESS**:

_____
Street City Province Postal

**DATE OF BIRTH:** _____
Month/Day/Year

**GENDER IDENTITY**: _____

**EMAIL**: _____ **PHONE**: _____

**POSITION SOUGHT**: _____

By signing this document below, I agree to adhere to the policies and procedures of BNL or affiliated club (as applicable), including, but not limited to, the *Code of Conduct and Ethics*, *Conflict of Interest Policy*, *Privacy Policy*, and *Screening Policy*. Policies are located at the following link: [**insert link**]

I recognize that I must pass certain screening requirements depending on the position sought, as outlined in the *Screening Policy*, and that the Screening Committee will determine my eligibility to volunteer or work in the position.

**NAME (print)**: _____ **DATE**: _____

**SIGNATURE**: _____

## Appendix C – Screening Disclosure Form

**NAME**:

_____
First Middle Last

**OTHER NAMES YOU HAVE USED:**

_____

**CURRENT PERMANENT ADDRESS**:

_____
Street City Province Postal

**DATE OF BIRTH:** _____ **GENDER IDENTITY**: _____
Month/Day/Year

**CLUB (if applicable):** _____ **EMAIL**: _____

*Note: Failure to disclose truthful information below may be considered an intentional omission and may result in the loss of volunteer responsibilities or other privileges and/or disciplinary action.*

**Have you been convicted of a crime? If so, please complete the following information for *each conviction*. Attach additional pages as necessary.**

Name or Type of Offence: _____

Name and Jurisdiction of Court/Tribunal: _____

Year Convicted: _____

Penalty or Punishment Imposed: _____

Further Explanation: _____

**Have you ever been disciplined or sanctioned by a sport governing body or by an independent body (e.g., private tribunal, government agency, etc.) or dismissed from a coaching or volunteer position? If so, please complete the following information for each disciplinary action or sanction. Attach additional pages as necessary.**

Name of disciplining or sanctioning body: _____

Date of discipline, sanction or dismissal: _____

Reasons for discipline, sanction or dismissal: _____

Penalty or Punishment Imposed: _____

Further Explanation: _____

**Are criminal charges or any other sanctions, including those from a sport body, private tribunal or government agency, currently pending or threatened against you? If so, please complete the following information for each pending charge or sanction. Attach additional pages as necessary.**

Name or Type of Offence: _____

Name and Jurisdiction of Court/Tribunal: _____

Name of disciplining or sanctioning body: _____

Further Explanation: _____

**PRIVACY STATEMENT**

By completing and submitting this Screening Disclosure Form, I consent and authorize Bicycle Newfoundland and Labrador (BNL) and/or affiliated club to collect, use and disclose my personal information, including all information provided on the Screening Disclosure Form as well as my Enhanced Police Information Check and/or Vulnerable Sector Check (when permitted by law) for the purposes of screening, implementation of the *Screening Policy*, administering membership services, and communicating with National Sport Organizations, Provincial/Territorial Sport Organizations, Clubs, and other organizations involved in the governance of sport. The BNL organization and affiliated club do not distribute personal information for commercial purposes.

**CERTIFICATION**

I hereby certify that the information contained in this Screening Disclosure Form is accurate, correct, truthful and complete.

I further certify that I will immediately inform BNL or affiliated club (as applicable) of any changes in circumstances that would alter my original responses to this Screening Disclosure Form. Failure to do so may result in the withdrawal of volunteer responsibilities or other privileges and/or disciplinary action.

**NAME (print)**: _____ **DATE**: _____

**SIGNATURE**: _____

## Appendix D – Screening Renewal Form

**NAME**:

_____
First Middle Last

**CURRENT PERMANENT ADDRESS**:

_____
Street City Province Postal

**DATE OF BIRTH:** _____**GENDER IDENTITY**: _____
Month/Day/Year

**EMAIL**: _____ **PHONE**: _____

By signing this document below, I certify that there have been no changes to my criminal record since I last submitted a Criminal Record Check, Enhanced Police Information Check and/or Vulnerable Sector Check and/or Screening Disclosure Form to Bicycle Newfoundland and Labrador (BNL) or affiliated club. I further certify that there are no outstanding charges and warrants, judicial orders, peace bonds, probation or prohibition orders, or applicable non-conviction information, and there have been no absolute and conditional discharges.

I agree that any Criminal Record Check, Enhanced Police Information Check and/or Vulnerable Sector Check and/or Screening Disclosure Form that I would obtain or submit on the date indicated below would be no different than the last Criminal Record Check, Enhanced Police Information Check and/or Vulnerable Sector Check and/or Screening Disclosure Form that I submitted to the BNL or an affiliated club. I understand that if there have been any changes, or if I suspect that there have been any changes, it is my responsibility to obtain and submit a new Criminal Record Check, Enhanced Police Information Check and/or Vulnerable Sector Check and/or Screening Disclosure Form to the Screening Committee instead of this form.

**I recognize that if there have been changes to the results available from the Criminal Record Check, Enhanced Police Information Check and/or Vulnerable Sector Check and/or Screening Disclosure Form, and that if I submit this form improperly, then I am subject to disciplinary action and/or the removal of volunteer responsibilities or other privileges at the discretion of the Screening Committee.**

**NAME (print)**: _____ **DATE**: _____

**SIGNATURE**: _____

## Appendix E – Request For Criminal Records Check and/or Vulnerable Sector Check

*Note: BNL and affiliated club must modify this letter to adhere to any requirements from the CRC/VSC provider.*

**INTRODUCTION**
[insert Organization] is requesting the following check(s):

Criminal Records Check [Tick if applies]
Vulnerable Sector Check [Tick if applies]

for _____ [insert individual's full name] who identifies as a _____ [insert gender identity] and who was born on _____ [insert birthdate].

**DESCRIPTION OF ORGANIZATION**

[insert Organization] is a not-for-profit [national, territorial, local] organization for the sport of [**insert sport**] located in [location].

[Insert additional description]

**DESCRIPTION OF ROLE**
_____ [insert individual's name] will be acting as a _____ [insert individual's role]. In this role, the individual will have access to vulnerable individuals. Their conduct may include: coaching, chaperoning, driving and/or direct personal support.

[Insert additional information re: type and number of vulnerable individuals, frequency of access, etc.]

**CONTACT INFORMATION**
If more information is required from [insert Organization], please contact the Screening Committee Chair:

[Insert information for Screening Committee Chair]

Name: _____ Position: _____

Signature: _____ Date: _____